

them, provided that the party had given all the necessary and proper instructions to the carrier.

In T 777/98 (OJ 2001, 509) the board held (see headnote) that if a party to proceedings requested re-establishment of rights on the basis that a document missed an EPO time limit because it did not arrive within the **standard delivery time**, that party would have to prove that the form of postage used would normally have ensured that the document would reach the EPO on time. The board left open the question whether a party who relies on the usual delivery time has exercised all due care with regard to the time limit.

6. Procedural treatment of requests for re-establishment

6.1. Department competent to decide upon the request

The department competent to decide on the omitted act shall decide upon the application (R. 136(4) EPC, Art. 122(4) EPC 1973).

The boards of appeal are competent to decide on the request for re-establishment in respect of the **time limit for filing a notice of appeal** (Art. 108 EPC), since the department competent to decide whether the appeal was inadmissible for non-compliance with Art. 108 EPC is, under R. 101(1) EPC, the board of appeal (T 1973/09; T 808/03 of 12 February 2004; T 949/94 of 24 March 1995; T 473/91, OJ 1993, 630). The boards of appeal are also competent to decide on the request for re-establishment in respect of the time limit for filing the written **statement setting out the grounds of appeal** (T 624/96).

While this competence in relation to admissibility of an appeal is subject to the exception of Art. 109(1) EPC (interlocutory revision), this provision confers only the limited power to set aside the department's own decision if the appeal was considered admissible **and** well founded (T 808/03, T 1973/09). The admissibility of an appeal under Art. 109 EPC only falls under the jurisdiction of the department of first instance when this question can be decided immediately on the basis of the appeal submissions themselves (notice of appeal and statement of grounds, date of payment of the appeal fee). The boards of appeal have exclusive jurisdiction over a request for restitutio in respect of a time limit relating to the appeal itself (T 473/91, T 949/94, T 65/11).

In W 3/93 (OJ 1994, 931) the board held that as the board had to decide on the protest, it was also competent to examine the request for re-establishment of rights (Art. 122(4) EPC 1973).

In T 555/08 loss of rights (deemed withdrawal of the application due to **non-payment of a renewal fee**) occurred **while appeal proceedings were pending**. When appeal proceedings start, responsibility for the case passes from the department of first instance to the boards of appeal (the devolutive effect, see T 473/91, OJ 1993, 630). Hence in the case in point jurisdiction to decide on the request for re-establishment lay with the board hearing the pending appeal (see T 191/82, OJ 1985, 189; T 936/90 of 22 July 1993; T 708/08; T 1935/08; T 1426/14).

In T 1381/11 the board referred to T 555/08 and held that a loss of rights due to the non-payment of renewal fees automatically terminated the appeal proceedings. The issue of whether or not an appeal was pending was therefore directly linked to a request for re-establishment of rights regarding failure to pay the renewal fee made at the appeal stage. The formalities officer should therefore have acted on behalf of the board of appeal rather than the examining division, before which the case was no longer pending. The board thus took the view that it had jurisdiction to decide over the request for re-establishment of rights according to Art. 111(1), second sentence, EPC (see also T 649/13).

In T 1815/15 the appellant (patent proprietor) filed a request for re-establishment of rights with respect to the non-observation of the time limit according to R. 82(3) EPC. In line with the reasoning in G 1/90 and by making use of the discretion provided by Art. 111(1) EPC, the board stated it would decide on the request for re-establishment of rights filed while the appeal was pending.

In J 22/86 (OJ 1987, 280) the Legal Board stated in relation to the **failure to pay grant and printing fees** and to file translations that the examining division was in the first instance competent to decide upon such omitted act. However, in view of the special circumstances of this case, the Legal Board decided, pursuant to Art. 111(1) EPC 1973, to exercise the power of the examining division to decide upon the application for restitutio (see also J 9/86).

In T 26/88 (OJ 1991, 30) the appellant failed to comply with the request (pursuant to R. 58(5) EPC 1973) to pay the printing fee and to file translations of the claims within three months of notification of the request. The board found that the circumstances of decision J 22/86 were quite different from the case at issue and justified the exceptional exercise of the power of the examining division to decide on the application for re-establishment. In the case before the board the **opposition division's formalities officer** was responsible (see also T 522/88).

In J 10/93 (OJ 1997, 91) the Legal Division not only decided on the request for recording the transfer of a patent application, for which it was competent according to Art. 20(1) EPC 1973, but also dealt with the appellants' application for re-establishment of rights which it rejected as inadmissible. Since the omitted act was the applicant's **failure to reply to a communication of the examining division** issued pursuant to Art. 96(2) EPC 1973, the department competent to decide on the application for restitutio was the **examining division** (Art. 122(4) EPC 1973). The Legal Board set aside the decision finding that the Legal Division had exceeded its powers. It stated that this could not be justified by any need to decide on the request for restitutio as a preliminary issue to be answered before examining the request for registering the transfer.

6.2. Request for re-establishment as auxiliary request

In J 23/96 the applicant had applied for a decision under R. 69(2) EPC 1973 (R. 112(2) EPC) and, as an **auxiliary request**, asked for re-establishment of rights. The examining division issued a brief communication saying that the request for re-establishment would be decided once the decision under R. 69(2) EPC 1973 was final, or

during any ensuing appeal. The Legal Board held that the examining division had been wrong not to decide on this auxiliary request. It noted that auxiliary requests were filed in case the main request was refused; they then took its place and had to be dealt with in the **same decision**. The course taken by the examining division was at odds with procedural economy, and might also oblige the applicant to appeal twice. This amounted to a substantial procedural violation (see also J.1/80). The Legal Board referred the matter back, without considering the merits, for the division to decide on the two requests together, the examining division being the "competent department" within the meaning of Art. 122(4) EPC 1973.

6.3. Parties to re-establishment proceedings and the right to be heard

In T.552/02 the board held that the response to be given to the application for re-establishment was of the utmost importance for the respondents, as it affected the actual admissibility of the appeal and hence the reviewability of the opposition division's decision to revoke the patent in suit. From this the board deduced that it would be a breach of Art. 113(1) EPC 1973 to take a decision concerning the interests not only of the appellants but also of the respondents without giving the latter an opportunity to present comments (see also T.1561/05).

6.4. Concurrent request for interruption of proceedings

In J.1/87 (= J.902/87, OJ 1988, 323) the Legal Board decided that, in accordance with R. 90 EPC 1973 (R. 142 EPC), which the EPO must apply of its own motion, the legal incapacity of an applicant or his representative has the effect of interrupting proceedings and, where appropriate, the one-year time limit referred to in Art. 122(2) EPC 1973 (now R. 136(1) EPC).

In T.315/87 of 14 February 1989 the board stated that, in case a request for interruption was filed together with a request for re-establishment, preference should be given to the application of Art. 122 EPC 1973, under which less severe impairment could also be grounds for re-establishment of rights. The question of any interruption of proceedings under R. 90 EPC 1973 could be left open provided that all the losses of rights which had occurred could be overcome by restitutio in integrum.

In J.9/90 the Legal Board of Appeal held that for R. 90(1)(b) EPC 1973 (interruption of proceedings because of insolvency) to be applied in the light of Art. 60(3) EPC 1973 (unchanged) and R. 20(3) EPC 1973 (R. 22(3) EPC), the applicant entered in the Register of European Patents and the insolvent person (here, a limited company) had to be **legally identical**. However, the fact that the persons involved were not identical did not necessarily rule out re-establishment of rights under Art. 122 EPC 1973. Someone who was only indirectly affected by an event, such as insolvency, could be "unable" within the meaning of Art. 122(1) EPC 1973. In such a case however the persons so affected had to prove that they had exercised all the due care that could have been expected of them in the circumstances of such an insolvency.

6.5. Re-establishment in the context of the President's extension of time limits during general disruption

In T 192/84 (OJ 1985, 39) it was held that if the President of the EPO extended time limits expiring during a period of general interruption in the delivery of mail in a contracting state (R. 85(2) EPC 1973; now R. 134 EPC, reworded), a pending application for re-establishment of rights considered to have been lost during that period, which had been filed by a representative having his place of business within that state, had to be deemed to have been made without purpose ab initio, even though the non-observance of the time limit was due to causes other than the interruption in the delivery of mail. Accordingly, it could be declared that no rights were lost and the fee for re-establishment of rights could be refunded.

6.6. Redundant request for re-establishment

In T 1198/03 the respondent (opponent) sent his reply to the appellant's statement of grounds of appeal one day late and requested that, if the board did not otherwise consider the reply, he be re-established into the time limit for filing the reply. The board decided to consider the respondent's reply. The request for re-establishment was therefore redundant.

In T 2317/13 the board held that the re-establishment request was redundant since the delay in filing the statement of grounds of appeal had been only of minutes and the **lateness of the filing was truly minimal** (the first four pages of the statement of grounds were in fact received before the time limit expired). According to the board, the discretion given to the board by Art. 13(1) RPBA 2007 to admit and consider late-filed submissions which amended a party's previously filed written case extended to the late admission and consideration of the written case itself (see T 1198/03).

7. Rights of use under Article 122(5) EPC

In J 5/79 (OJ 1980, 71) the Legal Board stated that according to Art. 122(6) EPC 1973 (Art. 122(5) EPC), third party rights of use arose only where the restoration of rights related to an already published European patent application or a European patent; those whose commercial interests were at stake should be entitled to be sure that protection, the existence of which was public knowledge, and which had fallen into the public domain, no longer had effect. Third party rights to continue use of an invention where an applicant's rights have been lost and restored cannot arise if the loss and restoration of the applicant's rights occur before publication of the European patent application.

8. Principle of proportionality

In T 111/92 of 3 August 1992 the statement of grounds of appeal were filed two days late due to an error of calculation of the due date on the part of the representative. The board held that the mistake in calculating the ten-day period due to human error at a time when the person in question was under pressure was an isolated mistake in an otherwise satisfactory system. The board referred to the principle of proportionality and stated that,

in accordance with general principles of law, as applied in the context of administrative law, a procedural means used to achieve a given end (e.g. a sanction following a procedural non-compliance) should be no more than that which is appropriate and necessary to achieve that end. Bearing the principle of proportionality in mind, the loss of the patent application because of the procedural irregularity which had occurred in the case at issue would be a severe result. Moreover, the interests of any third party misled within the meaning of Art. 122(6) EPC 1973 by the fact that the statement of grounds of appeal was filed two days late would be protected by Art. 122(6) EPC 1973. The board allowed thus the application for re-establishment (see also J 22/92, T 869/90 of 15 March 1991, T 635/94 of 25 April 1995, T 804/95, T 27/98 of 7 May 1999).

In J 44/92 and J 48/92 the Legal Board noted that the principle of proportionality only applied in borderline cases, **in support of other grounds** already substantiating to a certain extent the allowance of the appeal. Usually it had been applied where a time limit had been missed by one or two days due to some miscalculation (see below). The Legal Board considered that the principle of proportionality did not assist the appellant as there had been a major system fault, which could not be excused by reliance on the principle of proportionality.

In decision T 971/99 and T 1070/97 the boards stated that Art. 122(1) EPC 1973 did not leave any room for the application of the principle of proportionality, so that the number of days by which a time limit had been missed was irrelevant for deciding whether all due care was applied or not. Only the character of the conduct before the time limit expires was decisive for the consideration of the issue of due care, not the length of the ensuing delay (see also T 439/06, OJ 2007, 491; T 1561/05; T 1465/07).

In T 1465/07 the board interpreted Art. 122 EPC 1973 in the context of the right of access to a court taking into account the case law of the European Court of Human Rights and the European Court of Justice (ECJ). The board was of the opinion that the ECJ's interpretation of the general principle of proportionality could be applied to limitations of the right of access to the boards of appeal, such as rules on time limits, by legislative measures or their application. This means that those measures or their application must not exceed the limits of what is appropriate and necessary in order to attain the objectives legitimately pursued by the legislation in question; when there is a choice among several appropriate measures or ways of applying them recourse must be had to the least onerous, and the disadvantages caused must not be disproportionate to the aims pursued. As for the application of Art. 108 EPC 1973 in conjunction with Art. 122 EPC 1973, the board stated that the principle of proportionality had the consequence that the interpretation of those provisions must not impose means that are inappropriate, unnecessary or disproportionate in relation to the aim to be achieved, namely legal certainty and the proper administration of justice by avoiding any discrimination or arbitrary treatment. Correspondingly, the **conditions for granting re-establishment**, in particular the requirement of due care, **must not be interpreted in an excessive manner** that unreasonably restricts access to the board and thus prevents the board from deciding on the merits of the case. See also T 578/14 and T 1022/14.